

24NNCV04680 24NNCV04680

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Case Number: 24NNCV04680 Hearing Date: June 30, 2026 Dept: T

Maria Murillo vs

Lyft, Inc., a California Corporation, et al.

Application

for Order Admitting Todd A. Bowers Pro Hac Vice

Moving Party: Defendant Lyft, Inc.

Responding Party: None

Tentative Ruling: Grant

BACKGROUND

On May 14, 2026, Defendant

Lyft, Inc. ("Defendant") moved for an order granting the application for appearance pro hac vice by Todd A. Bowers ("Bowers").

No opposition was filed.

ANALYSIS

I. Legal Standard

California Rules of Court,

Rule 9.40 provides that an attorney in good standing in another jurisdiction may apply to appear as counsel pro hac vice in the State of California by filing a verified application together with proof of service by mail of a copy

of the application and notice of hearing on all parties who have appeared in the case and on the State Bar of California at its San Francisco office, with payment of an application fee, so long as that attorney is not a resident of the State of California, and is not employed or regularly engaged in substantial business, professional, or other activities, in the State of California. An active licensee of the State Bar of California must also be associated as attorney of record.

The application must state: (1) the applicant's residence and office addresses; (2) the courts to which the applicant has been admitted to practice and the dates of admission; (3) that the applicant is a member in good standing in those courts; (4) that the applicant is not currently suspended or disbarred in any court; (5) the title of each court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and (6) the name, address, and telephone number of the active member of the State Bar of California who is attorney of record in the local action. (Cal. Rules of Court, rule 9.40(d).)

II. Discussion

Applications to appear as counsel pro hac vice must contain the facts specified in California Rules of Court, rule 9.40(d). Bowers' verified application contains the following information:

1. His office and residential addresses. (Bowers Decl. ¶¶ 1-2.)

2. The courts to which he has been admitted: Washington Western District Court; Washington Eastern District Court, and California Central District Court, and all state courts within the State of Washington (Bar No. 24638). (Id. ¶¶ 3-4.)

3. Evidence that he is a member in good standing of these courts. (Ibid.)

4. Evidence

that he is not suspended or disbarred in any state. (Id. ¶ 5.)

5. Bowers

has submitted five applications in the preceding two years and been admitted pro hac vice in California in each of the following matters:

a.

Kendon Industries LLC v. Towblazer, Inc., et al., case number 8:23-cv 00732-FWS-DFM. (Id. ¶ 7a.)

b.

Richard James McDougall v. Susan Marquez, et al., case number CGC 21-596766. (Id. ¶ 7b.)

c.

Francisco Perez Sanchez v. Kuldeep Shukla, et al., case number 20STCV48398. (Id. ¶ 7c.)

d.

Ozz Saturne v. Sasan Nassimizadeh, et al., case number 23STCV02365. (Id. ¶ 7d.)

e.

Jose Valle-Morales v. Maria De Sauiner, Uber Technologies, Inc., Raiser LLC, Raiser-CA LLC, et al., case number 21STCV30657 (Id. ¶ 7e.)

6. The

name, address, and telephone number of Rosa E. Manchester, the associated California attorney in this matter. (Id. ¶ 8.)

In compliance with California

Rules of Court, Rule 9.40(a)'s eligibility requirements, Bowers' declaration further states that he resides in the State of Washington and that he is not regularly employed or engaged in the practice of law or any substantial business, professional, or

other activities, in the State of California.

(Bowers Decl. ¶¶ 1, 6.)

In compliance with California

Rules of Court, Rule 9.40(c)'s service requirements, associated California

attorney Manchester declares that she "caused a copy of this

Application, together with all supporting papers and the required fee, to be submitted to the State Bar of California."

(Manchester Decl. ¶ 6.) In

addition, Manchester attaches a copy of the receipt paid to the California

State Bar for \$615.00. (See id.,

Exh. B.) Moreover, the proof of service

reflects service on all remaining parties who have appeared in the action. (See Cal. Rules of Court, rule 9.40(c)(1).)

Therefore, the application

is granted.

RULING

Defendant Lyft, Inc.'s Application for Order Admitting

Todd A. Bowers Pro Hac Vice is GRANTED.